


When different provisions of the constitution are found to be in conflict with each other, the courts should interpret them harmoniously so as to avoid the conflictual implications between them. This is known as the doctrine of harmonious construction. This doctrine is also called as the rule of avoidance of conflict.

While explaining the doctrine of harmonious construction, Justice Venkatraama Aiyar observed[80]: "In case of two irreconcilable provisions, they should be so interpreted that effect can be given to both and none of the two is rendered nugatory".

Similarly, Justice Mukherjea said[81]: "If certain provisions in the constitution appear to be in conflict with each other, these provisions should be interpreted so as to effect a reconciliation between them so that, if possible, effect could be given to all".

The doctrine of harmonious construction should be understood in the light of the following points:

1. The court should read the constitution as a whole and take into consideration its different parts.
2. The court should proceed on the presumption that no conflict (between the different parts) was intended by the constitution-makers.

**2. Application of the Doctrine**

The Supreme Court has applied the doctrine of harmonious construction to reconcile the conflict:

1. Between the fundamental rights and directive principles of state policy;
2. Between different fundamental rights;
3. Between fundamental rights and legislative privileges;
4. Between fundamental rights and amendment procedure;
5. Between fundamental rights and other parts of the constitution; and
6. Between different entries of the legislative lists in the seventh schedule.

The Supreme Court, on the application of the doctrine of harmonious construction to the fundamental rights and directive principles of state policy so as to give effect to both as much as possible, made the following observation[82]:

"Although in earlier decision the court paid scant regard to the directives on the ground that the courts had little to do with them since they were not justiciable or enforceable like the fundamental rights, the